

Gaurav Jain vs State & Anr on 4 September, 2020

Author: Yogesh Khanna

Bench: Yogesh Khanna

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ W.P.(CRL) 235/2020
GAURAV JAIN

.....
Through : Mr.Anil Goel, Advocate
in person.

versus

STATE & ANR.

.....
Through : Mr.Chaitanya Gosain, Mr.
Advocates for Mr.Rahu
Standing Counsel for
Sompal.
Mr.Dharmendra Kr. Adv

CORAM:

HON'BLE MR. JUSTICE YOGESH KHANNA
ORDER

% 04.09.2020

1. The hearing has been conducted through Video Conferencing.

2. Respondents No.2 and 3 are present along with their counsel and are identified by SI Sompal, Police Station Ranjit Nagar. It is submitted by learned counsel for the petitioner the marriage between the petitioner and respondent No.2 was solemnized as per Hindu rites and customs and respondent No.3 is the mother of respondent No.2. A son was born from the wedlock on 06.02.2010. However, there were disputes amongst the husband and wife. On 12.11.2015 an FIR No.764/2015 was filed against the petitioner at PS Ranjit Nagar, Delhi under Sections 498A/406/307 IPC by the respondent no.2.

3. On 17.10.2015 a complaint under Section 12 of Protection of Women from Domestic Violence Act was filed against the petitioner by respondent No.2. On 02.07.2016 the chargesheet was filed and the matter is pending trial. On 21.10.2016 a CRL.M.C.No.208/2016 was filed for quashing of FIR on the basis of compromise but it was dismissed as withdrawn vide order dated 21.10.2016.

4. It is submitted by both the counsels that the petitioner and respondent Nos. 2 and 3 have settled the matter amicably and entered into compromise and dispute between the parties have since been vanished and the parties have buried their hatchet. Hence, respondents No. 2 and 3 are no longer interested to pursue the FIR against the petitioner.

5. Admittedly, the petitioner has paid an amount of Rs 20.00 lacs to his wife in the name of his minor child and have also transferred a house in Ranjit Nagar bearing Flat No.3143, Second Floor, Gali No.1, Near Hanuman Chowk, Ranjit Nagar, New Delhi in the name of respondent No 2. who is residing therein along with her minor child.

6. In view of the submissions so made there is nothing left for further investigation of the matter, hence FIR No.764/2015 under Sections 498A/406/307 IPC registered at PS Ranjit Nagar, Delhi and the proceedings emanating therefrom stands quashed.

7. Since the parties are near relation to each other and since a decree of divorce is also granted, the petition stands disposed of. Pending application(s), if any, also stand disposed of.

YOGESH KHANNA, J.

SEPTEMBER 04, 2020 AT